

 PREMIER® POLICY AND PROCEDURE	TITLE: Reporting a Suspected Security or Privacy Incident or Violation Policy and Procedure	
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Printed copies are for reference only. Please refer to the electronic copy for the latest version.

1. Purpose

To establish the standards for reporting real or suspected security and privacy incidents and potential violations of Premier security and privacy policies, procedures, standards and processes as well as state and federal regulations.

2. Scope

Applies to Premier, Inc., its subsidiaries and all workforce members with direct or indirect access to Premier's Information Security Management System, Premier Protected Data or Premier Information Assets.

3. Definitions

Access – The ability or the means necessary to view, read, write, modify or communicate data/information or otherwise use any system resource.

Breach – The unauthorized acquisition, access, use, or disclosure of information which compromises the security or privacy of such information, except where an unauthorized person to whom such information is disclosed would not reasonably have been able to retain such information.

Disclosure – The release, transfer, provision of, access to or divulging in any other manner of information outside the entity holding the information.

Disseminate – To disperse throughout.

Incident – A single or a series of unwanted or unexpected security or privacy events that result in harm, or pose a significant threat of harm, to Premier Information, Premier Protected Data and/or Premier's Information Security Management System and require non-routine preventative or corrective action.

Information Assets – A body of knowledge that is organized and managed as a single entity and anything that has value to Premier, Inc. It is an identifiable collection of data stored in any manner and recognized as having value for the purpose of enabling Premier, Inc. to perform its business functions and operations.

Information Security Management System (ISMS) – A set of policies and procedures for systematically managing an organization's protected data. Premier's ISMS is designed to minimize risk and ensure business continuity by pro-actively limiting the impact of a security or privacy breach to Premier Inc.'s systems and/or computers, which include but are not limited to, laptops and network devices used to process Premier protected data.

Personally Identifiable Information (PII or "Personal Information") – A subset of protected data and includes any information, documents, records and electronic data processed, accessed, Used, stored or maintained by Premier (i) that identifies or can be used to identify, contact, or locate the person to whom such information pertains, or (ii) from which identification or contact information of an individual person can be derived.

Premier – Includes Premier, Inc., its subsidiaries, and any affiliated companies that are subject to any and all applicable organizational, state and federal regulations.

Premier Information – A subset of protected data and includes documents, materials, records and electronic data processed, stored or maintained in any manner in Premier's Information Security Management System and deemed proprietary by Premier, and is confidential in nature. This information is not protected by a regulatory nature but is of a business confidential nature and restricted and protected by Premier's Policies.

Privacy Incident – The loss of control, compromise, unauthorized disclosure, unauthorized acquisition, unauthorized access, or any similar term referring to situations where persons other than authorized users, have access or potential access to protected data in usable form, whether physical or electronic, or where authorized users access protected data for an unauthorized purpose. The term encompasses both suspected and confirmed incidents involving protected data which raise a reasonable risk of harm.

Process – The means to perform any operation or set of operations upon Premier's protected data, whether or not by automatic means, including but not limited to, collecting, recording, organizing, storing, maintaining, adapting or altering, retrieving, accessing, consulting, using, disclosing by transmission, disseminating, or otherwise making available, aligning or combining, blocking, erasing or destroying.

Protected Data – Documents, records and electronic data processed, stored or maintained by Premier that may be accessed, used and disclosed by workforce members of the Premier organization and third parties as authorized by applicable law, but not to the public. Protected data includes the following four subsets: "Premier Data", "Premier Business to Business Data (B2B)", "Premier Business to Consumer Data (B2C)", and "Personal Information". Reference the *Premier Data Stewardship Program (DSP) – Part I General Program Policies* for more information.

Protected Health Information (PHI) – A subset of protected data. Specifically, it is health information that is collected about an individual that (i) is created or received by or on behalf of a covered entity, health care provider, health plan or health care clearinghouse; (ii) relates to the past, present or future physical or mental health or condition of an individual, the provision of health care to an individual or the past, present or future payment for the provision of health care to an individual; and (iii) identifies the individual or with respect to which there is a reasonable basis to believe the information can be used to identify the individual based on standards issued by the federal government.

Public Data – Includes any documents, materials and electronic data processed, stored or maintained by Premier that (i) do not contain any reference to a particular natural person and that are devoid of all Premier Data or (ii) reference natural person(s), where all such referenced persons have approved the document for public use.

Retaliation – Any action, statement or behavior that is designed to punish an individual for filing an incident report, cooperating with an incident investigation, seeking guidance regarding a security or privacy concern or to deter one from taking such action. Retaliation includes, but is not limited to, bullying, intimidation and any adverse action against a workforce member regarding the terms and conditions of employment, such as termination, demotion or suspension as well as related threats of such actions.

Security – All of the administrative, physical and technical safeguards in an information system.

Security Incident – The attempted or successful unauthorized access, use, disclosure, modification, or destruction of information or interference with system operations in an information system containing or processing protected data.

Sensitive Personal Information – A subset of protected data considered to be so important to the individual that it must be specially protected. This type of information could be misused, resulting in significant harm to the individual, whether through embarrassment, identity theft, or other financial or social harm.

Subsidiaries – Any company which is owned or controlled directly or indirectly by another company; and includes any service corporation owned in whole or in part by an insured depository institution or any subsidiary of such a service corporation.

Use – The sharing, employment, application, utilization, examination or analysis of such information with an entity that maintains such information.

Violation – A failure to comply with Premier, Inc. policies, procedures, standards and processes as well as state and federal regulations.

Workforce Member - Any individual employee, contractor or consultant with logical and/or physical access to Premier information assets and resources.

4. Attachments/References

[Premier Data Stewardship Program \(DSP\) – Part I General Program Policies](#)
[Premier Data Stewardship Program \(DSP\) – Part IV Technical Safeguards Policies](#)
[Premier Data Stewardship Program \(DSP\) – Part V Protected Health Information](#)
[Security and Privacy Violations and Sanctions Policy and Procedure](#)
[Non-Retaliation Policy](#)

POLICY

1. It is the responsibility of each Premier workforce member to report real or suspected security or privacy incidents, violations, potential breaches, and noncompliance with Premier's security and privacy policies, standards, processes and procedures as well as state and federal regulations, following the procedure outlined in this Policy.
2. When in doubt about whether a situation, circumstance or act triggers an obligation to make an internal report, Premier workforce members must err on the side of caution and file an incident report following the procedure outlined in this Policy. A non-exhaustive list of possible security and privacy incidents and violations can be found in the *Security and Privacy Violations and Sanctions Policy and Procedure*.
3. All reported real or suspected security or privacy incidents, violations, potential breaches and noncompliance involving Premier workforce members will be investigated in accordance with the *Security and Privacy Violations and Sanctions Policy and Procedure* and all relevant Premier security and privacy policies, procedures, standards processes, and state and federal regulations.
4. In conjunction with the *Non-Retaliation Policy*, Premier prohibits any retaliatory action against a workforce member who made an internal report of real or suspected security or privacy incidents, violations, potential breaches, and noncompliance with Premier's security and privacy policies, standards, processes and procedures even if subsequent investigation proves the report to be unfounded.
5. Premier's Chief Information Security Officer and Chief Privacy Officer are responsible for the amendment and interpretation of this Policy.

PROCEDURE

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What to Report

6. Promptly report suspected privacy or security incidents, policy violations, concerns or issues. Refer to the Security and Privacy Violations and Sanctions Policy and Procedure for a non-exhaustive list of privacy and security violations.

How to Report

7. Premier Enterprise Service Portal - PremierNow
 - 7.1 Go to PremierConnect and click the Enterprise Service Portal – PremierNow tile or navigate directly to <https://premierprod.service-now.com/premiernow>.
 - 7.2 Click **Legal > Report a Privacy Incident** or **Security > Report a Privacy Incident**.
 - 7.3 Provide all requested information in the form and include as much detail as possible about the suspected privacy or security incident or violation, including but not limited to:
 - 7.3.1 Type of data involved.
 - 7.3.2 Entities/Members involved.
 - 7.3.3 Date the incident or violation took place.
 - 7.3.4 Communication surrounding the incident or violation.
 - 7.3.5 Steps taken to mitigate the incident or violation.
 - 7.3.6 Any other pertinent information to help assess the incident or violation.
 - 7.4 Do not share the actual protected data of any individual.
 - 7.5 Click **Submit**.
 - 7.6 Upon receipt, the Premier IT Service Desk prioritizes the incident and assigns it to Premier's Privacy Team who investigates the suspected privacy or security incident or violation.
8. If the privacy or security incident or violation is of a critical nature, contact the Privacy Team directly.
 - 8.1 Email PremierPrivacy@premierinc.com.
 - 8.2 Premier's Chief Privacy Officer at 704.816.4512.

Where to Go with Questions and Concerns

Contact the Chief Information Security Officer or Chief Privacy Officer with questions or concerns about this Policy.